

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: July 27, 2023

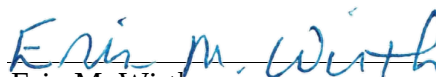
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER STAYING PROCEEDING

Pursuant to the revised schedule included in the March 28, 2023, order on Respondent's letter of request and extension of time ("Order"), discovery would have been completed in this proceeding in June and briefing would begin in July. However, on April 7, 2023, Respondent appealed as of right the March 28, 2023, Order pursuant to 46 C.F.R. § 502.150(d). That rule is silent regarding whether the appeal otherwise stays the proceeding before the undersigned and the parties have not requested a stay. Typically, interlocutory appeals do not operate as a stay of the proceeding before the presiding officer. 46 C.F.R. § 502.221(d). However, given the scope of discovery at issue in the appeal, a stay may be appropriate. Therefore, the parties were ordered to file a joint status report describing the status of discovery and their positions on whether a stay of the proceeding before the undersigned is appropriate.

On July 25, 2023, the parties filed their joint status report ("JSR"). They indicate that Complainant produced a small number of files in response to initial discovery requests and Respondent did not produce any documents for the reasons at issue in the March 28, 2023, Order. JSR at 2. Complainant states that it opposes a stay and refers to its response to the appeal of the March 28, 2023, Order. JSR at 2. Respondent states that "the only course available to the Presiding Officer is a stay until the Commission rules on the Appeal," asserting that both sides still have outstanding discovery requests and that "failure to stay the matter would improperly deprive Respondent of its right, under the FMC Rules, the Administrative Procedures Act, and Due Process, to present evidence." JSR at 2-3.

The parties have not completed initial disclosures and although Complainant's brief was due on July 19, 2023, it has not been filed. The parties cannot complete discovery while the appeal is pending and therefore are not prepared to brief the proceeding. Moreover, it would be premature to revise the schedule at this point. Therefore, it is necessary, *sua sponte*, to stay the proceeding before the undersigned pending the Commission's decision on the appeal. After the appeal is resolved, the parties should be prepared to propose a schedule for the proceeding.


Erin M. Wirth
Chief Administrative Law Judge